

TENTATIVE RULING FOR JUNE 8, 2026

Department R12 - Judge Kory Mathewson

Claire Courtemarche, et al v. Michael Haynes, Jr., et al – CIVSB2523189

Motion(s): Demurrer and Strike

Movant(s): Defendant Chino Valley Unified School District

Respondent(s): Plaintiff Claire Courtemarche

RULING: Demurrer is SUSTAINED, with Leave to Amend within 30 days. Motion to Strike is GRANTED.

Defendant Chino Valley Unified - to provide Order(s) and give Notice.

On January 16, 2026, the District filed the instant Demurrer and Motion to Strike. Plaintiff opposes both motions. Replies have not been filed. With the motions, counsel for the District, Susan Lee submits declarations and attests to sending two meet and confer letters to Plaintiff but not receiving a response. (See Lee Decls. ¶¶ 5-6.) The parties have not met and conferred pursuant to Code. However, as only one cause of action is at issue, the court will address the merits.

Request for Judicial Notice

The Court grants the request take judicial notice of Plaintiff's Government Claim, but not as to the truth of the matters asserted.

ANALYSIS

The District demurs to the third cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e) for failing to state facts sufficient to constitute a cause of action.

District's Notice contains an error. While the heading clearly states the demurrer is to the third cause of action for premises liability, the following paragraph states it is to the second cause of action and a First Amended Complaint that does not exist and Counsel obviously used a template and forgot to delete this extra language as this case does not have a First Amended Complaint, and the facts do not match those alleged in the Complaint. The motion itself, however, addresses the correct Complaint and the Notice identified the correct cause of action and the correct statute in support of the demurrer itself.

In the Opposition, Plaintiff argues the demurrer should be "denied"—which the Court take as overruled—in its entirety for this typographical error. As the Notice substantially complies with California Rules of Court, rule 3.1320, the request is denied and the Court will proceed on the merits. There can be no doubt that the District demurs to the third cause of action for premises liability for failing to state facts sufficient to constitute a cause of action. The Notice here is therefore sufficient. Plaintiff cites no legal authority that this is typographical error is fatal or that they did indeed lacked notice. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (See *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.)

As to the merits, the District argues that there are two problems with the third cause of action, which alleges a dangerous condition of public property. First, no dangerous condition is

identified in the Complaint; and second, no dangerous condition is identified in the underlying Government Claim. Further, the District argues that Plaintiff's cause of action fails because none of the required elements are pled with any specificity or supporting facts. Instead, only generic allegations are pleaded.

Demurrer to Third Cause of Action: Premises Liability (Dangerous Condition on Public Property)

Government Code section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (*See Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1121-1132.)

To state a cause of action against a public entity under Government Code section 835, a plaintiff must plead: (1) a dangerous condition existed on the public property at the time of the injury; (2) the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it. (Gov. Code, § 835; *Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439.)

Government Code section 830 defines a "[d]angerous condition" as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used." Property is not "dangerous" within the meaning of the statutory scheme if the property is safe when used with due care and the risk of harm is created only when foreseeable users fail to exercise due care. (Gov. Code, § 830; *Id.*) Even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons. (*Fuller v. State of California* (1975) 51 Cal.App.3d 926, 939.)

The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded. (*Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 809.) Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations. (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) The complaint must specify in what manner the condition constituted a dangerous condition. (*People ex rel. Dept. of Transportation v. Sup. Ct.* (1992) 5 Cal.App.4th 1480, 1485-86.)

Further, the District argues Plaintiff failed to allege facts demonstrating compliance with the claims presentation requirements. In this case, they note, the claim filed by the Plaintiff does indicate how or why the Elementary School contained a dangerous condition which contributed to the Plaintiff's harm. "[E]ven if the claim were timely, the complaint is vulnerable to a demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim." (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447 (*Stockett*) citing *Nelson v. State of California* (1982) 139 Cal.App.3d 72, 79.)

Here, there are no facts alleged identifying the dangerous condition in the Complaint.¹ In the Opposition, Plaintiff contends she is not required to show the dangerous condition that caused her injury. Regardless, her Complaint does not identify a dangerous condition.

Plaintiff further repeats her conclusory allegations and argues, though the allegation is omitted from the Complaint, that Haynes himself is the dangerous condition. Plaintiff does not address whether her Government Claim omits facts regarding a claim for premises liability or fails to identify a dangerous condition. Ultimately, the allegations are too general to support the claim in any event.

Since there are a significant amount of facts stated in the Government Claim that could potentially support a claim for premises liability if Plaintiff were to include specific allegations in her Complaint, such that the Court could then evaluate the claim's sufficiency, the Court sustains the demurrer, but with leave to amend within 30 days.

Motion to Strike

Plaintiff opposes the motion and restates section 3291 but excludes the final paragraph. Plaintiff then notes that Haynes is also a Defendant, however the motion to strike clearly states that this allegation should be stricken as to the District only.

Plaintiff then erroneously claims the District has confused the standard of a motion to strike with that of a demurrer. Plaintiff is incorrect and a motion to strike is the proper mechanism for striking improper allegations with respect to damages. "A motion to strike can also be used to attack claims for damages that are *not supported by the cause of action pleaded*. (A demurrer would not lie because a valid cause of action is otherwise stated.)." (WEIL & BROWN, CALIFORNIA PRACTICE GUIDE: CIVIL PROCEDURE BEFORE TRIAL [The Rutter Group] ¶ 7: 182.)

Here, Plaintiff is relying on section 3291, which explicitly does not apply to a public entity. Consequently, the Court strikes the allegation.

Dated: June 8, 2026

Judge Kory Mathewson

¹ The Complaint also alleges the premises were negligently owned, maintained, managed and operated—though neither party addresses this count in these filings. Regardless, even reading the Complaint in a light most favorable to Plaintiff, the allegations are too conclusory and therefore fail as to this allegation as well.